

Amendment No. 1 to SB0247

Briggs
Signature of Sponsor

AMEND Senate Bill No. 247

House Bill No. 297*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 67-5-1005(a)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as agricultural land, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained by the other owner through a right of survivorship and the property continues to meet minimum size requirements and other criteria necessary to qualify as agricultural land under this part.

SECTION 2. Tennessee Code Annotated, Section 67-5-1006(a)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as forest land, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained by the other owner through a right of survivorship and the property continues to meet minimum size requirements and other criteria necessary to qualify as forest land under this part.

SECTION 3. Tennessee Code Annotated, Section 67-5-1007(b)(1), is amended by adding the following language immediately after the third sentence of the subdivision:

Property that is qualified as open space land, owned by two (2) individuals, and held under the title, tenancy by the entireties, or the title, joint tenancy, is deemed to have unchanged ownership upon the death or divorce of an owner if the property is retained

by the other owner through a right of survivorship and the property continues to meet minimum size requirements and other criteria necessary to qualify as open space land under this part.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.